

CIVIL FORMS
4-960.3

Supreme Court Approved
October 31, 2025

14-960.3. Affirmation in support of expungement; upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

_____ JUDICIAL DISTRICT COURT

In re _____, No. _____

Petitioner.

AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Conviction)

I, _____, (Petitioner name), am requesting the expungement of records under Section 29-3A-5 (2019) NMSA 1978 (Expungement of Records upon Release upon Conviction), and hereby affirm the following:

1. ☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

AND

2. ☐ I have had no criminal convictions against me in the last ten (10) years.

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[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Example County

_____ JUDICIAL DISTRICT COURT

In re Jordan Avery Reyes, No. _____

Petitioner.

AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Conviction)

I, _____, (Petitioner name), am requesting the expungement of records under Section 29-3A-5 (2019) NMSA 1978 (Expungement of Records upon Release upon Conviction), and hereby affirm the following:

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AND

2. ☐ I have had no criminal convictions against me in the last ten (10) years.

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OR

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The most recent criminal conviction against me was: (Provide date of conviction, jurisdiction, case number, offense of conviction, and the date you finished serving your sentence for the conviction)

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I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

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(Petitioner Signature)

(Print Name)

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Street Address

City

State

Zip Code

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(Telephone)

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[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

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